

NO. 141-370402-25**WEINSTEIN MANAGEMENT CO.,
INC. AND WMCI DALLAS X, LLC,
Plaintiffs and Counter-Defendants,****v.****KATHRYN COPELAND,
Defendant and Counter-Plaintiff.**§
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§**IN THE DISTRICT COURT OF****TARRANT COUNTY, TEXAS****141ST JUDICIAL DISTRICT**

**Defendant/Counter-Plaintiff's Motion for Referral to the
U.S. Department of Justice and Texas Attorney General
for Investigation of Pattern-Or-Practice Civil Rights Violations**

TO THE HONORABLE JUDGE OF SAID COURT:

Defendant/Counter-Plaintiff Kathryn Copeland respectfully moves this Court to **refer this matter** to the **U.S. Department of Justice, Civil Rights Division**, and the **Texas Attorney General's Civil Rights & Consumer Protection Division**, for investigation under **42 U.S.C. § 3614(a)** and related statutes governing discriminatory housing practices.

This motion does **not** request that the Court make findings of liability.

It requests that the Court **transmit the record** and **notify enforcement authorities** of conduct that appears to implicate the federal Fair Housing Act ("FHA"), Americans with Disabilities Act ("ADA"), Texas Fair Housing Act, Texas Property Code, and consumer protection laws.

I. Legal Basis for Referral

A. 42 U.S.C. § 3614(a) — Pattern-or-Practice Enforcement

Congress authorized DOJ to investigate and prosecute when:

“There is reasonable cause to believe that **any person or group of persons is engaged in a pattern or practice** of resistance to the full enjoyment of any of the rights granted by this subchapter...”

Courts regularly refer matters to DOJ when the record indicates that systemic violations may exist or when vulnerable populations—including disabled tenants—are exposed to ongoing discriminatory or unsafe conditions.

B. Courts Have Authority to Refer Matters Raising Systemic Civil-Rights Concerns

Courts may transmit records or notify DOJ or state civil-rights authorities when proceedings reveal:

- evidence of retaliation against a disabled tenant;
- denial of reasonable accommodations;
- conduct that appears dangerous, coercive, or obstructive;
- potential fraud, misrepresentation, or evidence manipulation by property managers or contractors;
- constructive eviction or unsafe living conditions affecting a disabled resident;
- interference with inspectors or remediation professionals.

Such referrals do **not** prejudice the merits of the present litigation and do **not** require judicial findings of fact. Texas courts regularly transmit records or refer matters implicating civil-rights statutes under their inherent authority to ensure that potential violations affecting public welfare are reviewed by the appropriate enforcement agencies.

II. Summary of Concern Triggering Referral

The record before this Court shows evidence of:

1. **Denial of reasonable accommodations** to a disabled tenant (42 U.S.C. § 3604(f)).
2. **Retaliation** immediately following written assertion of civil rights (42 U.S.C. § 3617).
3. **Constructive eviction** through hazardous conditions and termination of temporary housing while remediation remained incomplete.
4. **Termination of housing for a disabled adult**, despite medical evidence and a licensed mold report deeming the unit uninhabitable.
5. **Potential bad-faith litigation tactics**, including intimidation by mass subpoenas and obstruction of medical care.
6. **Potential violations of Texas Property Code Chapters 92 & 94**, TDLR rules, and consumer protection laws.

These matters collectively raise **systemic** concerns appropriate for DOJ or AG review.

III. Requested Action

Defendant respectfully requests that this Court:

1. **Refer the matter** to the **DOJ Civil Rights Division** and **Texas Attorney General**;
2. **Transmit relevant portions of the record**, including filings and exhibits that document alleged civil-rights violations;
3. State that the Court has **no opinion** on the merits but believes the allegations are **serious enough to warrant review**.

Respectfully submitted,



KATHRYN COPELAND

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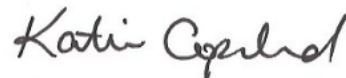
Defendant and Counter-Plaintiff,

Attorney Pro Se

CERTIFICATE OF CONFERENCE

I hereby certify that on December 1, 2025, I attempted to confer with opposing counsel via email regarding the relief requested in this motion. Counsel has not yet responded, but Defendant will withdraw sections of this motion if Plaintiffs agree to submit to this Court an Agreed Order for Referral to the U.S. Department of Justice and Texas Attorney General.

A reasonable effort was made to resolve the dispute without court intervention and the effort failed. Therefore, it is presented to the Court for determination.



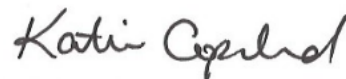
KATHRYN COPELAND

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of this motion was served on December 1, 2025 via electronic service to:

Glynis L. Zavarelli
gzavarelli@wandzlaw.com

Michelle S. Sortor
msortor@wandzlaw.com



KATHRYN COPELAND

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